

26NNCV03457 26NNCV03457

County: los-angeles

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Case Number: 26NNCV03457 Hearing Date: August 3, 2026 Dept: P

[TENTATIVE] ORDER GRANTING DEFENDANT'S MOTION TO SET ASIDE/VACATE DEFAULT

I. INTRODUCTION

On May 1, 2026, Plaintiffs Jerome Quemada and Christina Quemada ("Plaintiffs") filed this action against Defendants Louie Fernando Lopez, Jr., EAN Holdings, LLC, KWK Trucking, Inc., and Does 1 through 35, asserting claims arising out of a motor vehicle collision.

On June 24, 2026, the Clerk entered defaults against Defendants KWK Trucking, Inc. and Louie Fernando Lopez ("Defendants"). On July 2, 2026, Defendants filed the instant motion to set aside the defaults pursuant to Code of Civil Procedure section 473, subdivision (b). Plaintiffs filed their opposition on July 20, 2026, and Defendants filed their reply on July 27, 2026.

II. LEGAL STANDARD

Code of Civil Procedure section 473, subdivision (b) provides for either discretionary or mandatory relief from certain prior actions or proceedings in the trial court. (*Luri v. Greenwald*, (2003) 107 Cal.App.4th 1119, 1124.)

"Under the discretionary relief provision, on a showing of 'mistake, inadvertence, surprise, or excusable neglect,' the court has discretion to allow relief from a 'judgment, dismissal, order, or other proceeding taken against' a party or his or her attorney. Under the mandatory relief provision, on the other hand, upon a showing by attorney declaration of 'mistake, inadvertence, surprise, or neglect,' the court shall vacate any 'resulting default judgment or dismissal entered.'" [Citation.] Applications seeking relief under the mandatory provision of section 473 must be 'accompanied by an attorney's sworn affidavit attesting to his or her mistake, inadvertence, surprise, or neglect.' The mandatory provision further adds that 'whenever relief is granted based on an attorney's affidavit of fault [the court shall] direct the attorney to pay reasonable compensatory legal fees and costs to opposing counsel or parties.'" (*Ibid.*; Code Civ. Proc., § 473, subd. (b).)

Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken." (Code Civ. Proc. § 473, subd. (b).)

III. DISCUSSION

Under section 473(b), upon a showing by attorney declaration of "mistake, inadvertence, surprise, or neglect," the Court "shall vacate any resulting default, judgment, or dismissal."

Here, Defendants KWK Trucking, Inc. and Louie Fernando Lopez seek to vacate the defaults entered on June 24, 2026. Counsel, Stacey L. Walker, declares that although the necessary file materials had been received from the client, internal administrative issues delayed downloading those materials to counsel's server, which in turn delayed counsel's review and preparation of a responsive pleading. Counsel states that the materials became available on June 22, 2026, and that while reviewing the court docket on June 25, 2026, she discovered that defaults had been entered the previous day. Counsel immediately contacted Plaintiffs' counsel to request a stipulation to set aside the defaults, but Plaintiffs declined absent payment of costs. Counsel accepts full responsibility for the defaults, attests they were caused solely by her inadvertence, mistake, and neglect, and attaches Defendants' proposed Answer. (Walker Decl, ¶¶ 3-8; 10-12)

The motion, filed on July 2, 2026, was brought well within six months of the June 24, 2026, entry of default and is therefore timely. The motion includes an attorney affidavit of fault and a proposed Answer. Although Plaintiffs argue the defaults were attributable to delays by Defendants' insurance carrier rather than counsel, counsel unequivocally accepts responsibility for the defaults and states they resulted from an internal administrative issue within counsel's office. Nothing in the record demonstrates that the defaults were caused by anything other than counsel's admitted mistake, inadvertence, or neglect. The statutory prerequisites for mandatory relief under section 473(b) are therefore satisfied.

Based on the foregoing, the Court GRANTS Defendants' motion to vacate the entries.

Sanctions

Plaintiffs request attorney's fees and costs totaling \$2,327.84, consisting of \$977.84 in costs and \$1,350.00 in attorney's fees. (Opposition, p. 4; Konell Decl., ¶ 8.)

"The court may properly order payment of costs or attorney fees to the adverse party as compensation for loss or expense occasioned by the granting of the section 473 motion." (Jade K. v. Viguri (1989) 210 Cal.App.3d 1459, 1474.) Additionally, Code of Civil Procedure section 473 authorizes the Court to impose a penalty of no greater than \$1,000 upon the offending attorney or party. (Code Civ. Proc., § 473, subd. (c)(1)(A).)

In support of the request, Plaintiffs' counsel declares that he expended five hours addressing the defaults and the present motion but seeks reimbursement for only three hours at his hourly rate of \$450, together with \$977.84 in costs. While Plaintiffs request \$2,327.84 in fees and costs, the Court finds that an award of the statutory maximum penalty of \$1,000 is just and appropriate under the circumstances. Thus, defense counsel, Stacey L. Walker, is ordered to pay Plaintiffs monetary sanctions in the amount of \$1,000 within 30 days of notice of this order.

IV. CONCLUSION AND ORDER

The Court GRANTS Defendants' motion to vacate/set aside defaults. Defendants shall file their Answer within 20 days' notice of this order.

Defendants are to give notice.

Dated: August 3, 2026

JARED D. MOSES

JUDGE OF THE SUPERIOR COURT